TERMS AND CONDITIONS FOR NUBLO PREPAID CARD

Last Update on 7 th Oct 2024

By requesting for issuance of, or using the Nublo Payments Services LLC (**"Nublo"**) Card issued by Us, You confirm and agree that You understand, accept and shall comply with these Terms and Conditions and the Fees and Limits section (the **"Terms"**), and You understand and agree that the issuance of the Card to You is subject to You being successfully identified by Us in accordance with the policy and procedures notified to You at the time of issuance of the Card. The Card is non-transferable, and it may be cancelled, repossessed, or revoked at any time without prior notice subject to applicable law.

1. DEFINITIONS AND INTERPRETATION:

a. In these Terms, the following Terms shall have the following meanings:

i. **"Additional Terms"** means the specific terms and conditions which apply to prepaid multi-currency Cards as described herein for such Card.

ii. **"AED"** means United Arab Emirates' Dirham.

iii. **"ATM"** means Automated Teller Machine.

iv. **"Available Funds"** means the available balance in the Card that is available for utilization or withdrawal, as reduced by any Transaction amounts which have been reserved, blocked, are pending or have otherwise not been processed or released.

v. **"Base Currency"** refers to the default currency, i.e., "AED"; any Transaction performed in a currency not available on the Card will be converted into the Base Currency.

vi. **"Card"** means each multi-currency prepaid card issued by Us to You, with or without Your name printed or embossed on the physical Card and may also be in the form of a virtual card; different types of prepaid Cards may be subject to Additional Terms and conditions.

vii. **"Card Number"** refers to the unique sixteen-digit number printed or embossed on the face or reverse of the Card.

viii. **"Card Services"** means any services provided by Us, our third-party service providers, or the Program Manager, in connection with the Card, including call center services.

ix. **"Charges"** means amounts (including any fees or charges) payable by You arising from usage of the Card under these Terms, including Transactions fees, service charges, additional expenses, damages, legal costs, and disbursements.

x. **"Default Priority"** refers to the predetermined order of currencies available on the Card, which determines the sequence in which currencies are utilized for completing Transactions. If one currency is unavailable, the next currency in the priority sequence will be used, and so forth. The Default Priority will be established by Us unless we grant You the option to set your own Default Priority.

xi. **"E-commerce Website"** means internet websites where Merchants accept the Card for purchase of goods and services.

xii. **"Website"** means the website at the https://www.nublo.ai or any future URL applicable to Your Account and Card.

xiii. **"Identification Checks"** refers to checks carried out to obtain, verify, and record information that identifies each person who purchases or loads funds onto a Card, including asking for name, address, date of birth, Emirates ID, proof of address, salary certificate, visa, and other information that allows reasonable identification, as well as passport and/or other identifying documents when required; activation of the Card is subject to successful verification of identity.

xiv. **"Issuer"** means PayBy Technology Projects LLC.

xv. **"Limit"** refers to monthly, daily or per Transaction usage limit on the Card for cash withdrawal or purchase of goods and services; the set limit may be changed at Our discretion without advance written notice.

xvi. **"Load"** means to add money to the Card; 'Loaded' and 'Loading' will be construed accordingly.

xvii. **"Merchant"** refers to any establishment, corporate entity, person, or virtual establishment supplying goods and/or services that accept the Card as a mode of payment.

xviii. **"PIN"** means a unique Personal Identification Number allocated to each Card.

xix. **"POS Terminal"** refers to an electronic terminal available at Merchants, whether local or international, capable of processing Transactions.

xx. **"Program Manager"** refers to the party appointed by Us to provide Card Services.

xxi. **"Replacement Card"** means a substitute Card issued to You in the event of loss or theft or damage of Your Card.

xxii. **"Shortfall"** occurs when the Available Funds or, in the case of a multi-currency Card, a particular currency drops below zero (0).

xxiii. **"Supplementary Technology"** refers to any technologies or devices that we may introduce for use with or as a replacement for the Card, such as wristbands and mobile Wallets.

xxiv. **"Transaction"** refers to transactions made using the Card, whether with or without the Card Number, PIN, or signature, and regardless of whether any slip or voucher was signed; this includes cash withdrawals and amounts charged (or otherwise debited to the Card) by Us or a Merchant for goods, services, or benefits obtained by using the Card, the Card Number, or the PIN, or in any other manner, such as mail, telephone, fax, or internet orders.

xxv. **"Mobile Services"** are optional Nublo mobile app that may be available for download through Your Registered Mobile Device, enabling Transactions such as balance inquiries, viewing Available Funds, and customer service communications.

xxvi. **"Alternative Wallet Deductions"** means that when a Currency Wallet has insufficient funds, funds will automatically be deducted from another Currency Wallet to allow the Transaction to be completed or deducted from the Wallet as per our discretion; Alternative Wallet Deductions will be completed at the Conversion Rate.

xxvii. **"Supported Currency"** includes USD, AED and other foreign currencies as notified by Us to You from time to time.

xxviii. **"UAE"** means the United Arab Emirates.

xxix. **"Unsupported Currency"** means a currency other than a Supported Currency.

xxx. **"Wallet"** refers to a currency wallet on each multi-currency prepaid Card, comprising Available Funds in Base Currency or any other currency as provided by Us at Our sole discretion; each currency will be assigned to a Wallet on Your Card.

xxxi. "**We**," "**Us**," "**Our**" means Nublo Payments Services LLC or any of its branches, subsidiaries, successors, assigns, the Program Manager, or agents (where context permits).

xxxii. **"Working Day"** means any day of the week, excluding Saturdays, Sundays and statutory holidays in the UAE.

xxxiii. "**You**," "**Your**" refers to the cardholder of the Card or the person to whom the Card is issued.

b. We may partner with third parties with respect to the issuance, management, or distribution of Cards. All references to 'we', 'Us' or 'Our' herein shall, where required, be construed to include the Program Manager or agents appointed by Us.

c. Any references to 'Card' also include any Replacement Card, and/or any Supplementary Technology deployed by Us for use with Your Card where appropriate.

2. THE CARD:

a. The Card is a stored value card which allows You to access the Available Funds. The Card does not constitute a checking, savings or other bank account and is not connected in any way to any other account You may have with Us.

b. The Card is not a debit card or credit card, and You will not earn profit on any Available Funds on the Card.

c. Your Card will be issued to You on the basis of the required information that You have provided, based on the type of Card issued, and You agree to provide accurate Personal Information and to advise Us of any changes as soon as possible so that Our records remain correct. You should update

d. Us of any changes to Your Personal Information or as we may notify You from time to time.

e. Activation of the primary Card will be affected at the first loading on the Card.

f. Various Limits may apply to the Card in respect of each Transaction or daily transacted amounts. The Card issuance can be requested by an individual over the age of eighteen (18) years and are either UAE citizen or resident by registering on the official mobile application of Nublo (the "**Nublo App**").

g. Your use of the Card for making any Transaction shall constitute an agreement by You to pay any and all fees, commission, fines, third party fees and charges on such Transaction as prescribed by Us from time to time. You confirm that You have read and agreed to the schedule of fees, commission, and charges for usage of the Card for any Transaction. The Card is provided to You subject to Our schedule of fees, charges and Limits as amended and notified to You.

h. As the applicant, you are responsible for all Cards issued to You under the Terms and for any fees or charges that these Cards may incur.

i. We may at Our sole discretion issue / restrict /withdraw any number of Cards that relate to You.

j. The Card is and will at all times, remain Our property and must be returned to Us immediately upon request.

3. CARD USAGE:

a. You may only use the Card in accordance with the Terms and we have the right to restrict the services/facilities provided pursuant to the issue/usage of the Card at Our sole discretion and without any prior notice.

b. Subject to sufficient Available Funds and any restrictions in these Terms, the Card can be used worldwide at ATMs, POS Terminals or E-commerce website or any card operated machine or device, whether belonging to Us or other participating banks or financial

institutions where logos appearing on the Card are displayed/ accepted and any other services so authorized on the Card by Us. The Card may also be used at any Merchant location that accepts the Transaction for processing or displays the logo appearing on the Card. The Card may be used for retail purchases, cash withdrawals, purchase of goods and services via the internet, telephone, facsimile, and mail order or for any other services approved by Us, for Transaction values not exceeding the Limit (subject always to sufficient Available Funds) from time to time. The Available Funds will be reduced by the full amount of each Transaction plus any applicable Charges.

c. Due to restrictions, the Card may not operate in some countries and may not be accepted at some Merchant locations which are not in compliance with either Our internal policies or as determined at Our sole discretion.

d. Merchants that accept the Card are required to seek authorization from Us or through any appointed payment processor for all Transactions that You make, and we cannot stop a Transaction once authorized. Some Merchants may not be able to authorize Your Transaction if they cannot obtain an online authorization from Us.

e. There are circumstances, when using the Card at certain Merchants, where You may be required to have Available Funds greater than the value of the Transaction You wish to make. This amount will be reserved to cover tips/gratuities, temporarily reducing the balance available on the Card. This is required as the Merchant may need to access more funds than You initially planned to spend, however, You will only be charged for the actual and final amount of the Transaction You make.

f. We do not recommend using the Card as: (i) a guarantee of payment, for example as a deposit for hotels, cruise lines or car rental, as Merchants such as these may estimate the final bill and this amount will be temporarily unavailable to access or spend; or as (ii) an arrangement for periodic billing, as any debits to the Card as a result of such arrangements will be considered to have been authorized by You.

g. The Card is only for Your use and expires on the date on the front or back of the Card Upon expiry Your remaining funds from the Card will be available in Your Wallet in accordance with Our prevailing policy.

h. The Monthly Inactivity status will be assessed, after every six (6) consecutive months of Card and Account Inactivity.

i. The Card will be cancelled if it remains unused for a period of nine (9) months continuously with no available balance.

j. You agree not to use the Card in any manner that could damage, disable, overburden or impair the Card. You also agree not to use the Card for money transfers, accessing or purchasing goods from adult or gambling locations or internet sites, or for any other unlawful activity.

k. You must comply with all applicable laws and regulations (including any foreign exchange controls) with respect to the Card in the UAE and the country of use. We reserve the right to suspend the Card, terminate these Terms and exercise any other remedies available to Us due to Your failure to comply with any part of this provision. You agree that we have no obligation to monitor, review or evaluate the legality of Your Transactions and that such actions shall be Your sole responsibility. We are not liable for any prohibited use or misuse of the Card whatsoever.

l. The Card can only be used if it is in credit, and You are solely responsible for ensuring that there are sufficient Available Funds for an intended Transaction, else the Transaction will be rejected.

m. We are entitled to set off any sum of money on the Card due from You to Us against any positive balance on account held by You with Us. n. Any usage of the Card inconsistent or in contravention with the usage described in these Terms is not permitted.

o. If You are entitled to a refund for goods or services purchased using the Card, or another credit for any other reason, such refund or credit will be made to the Card, in the applicable currency thereby increasing the Available Funds.

p. Our record of any Transaction shall be final and binding. You will not be provided with a printed statement, and can check Your Available Funds via Nublo App. You may also be able to make a balance enquiry at some ATMs, although availability is dependent on the country and the ATM used and there may be a fee payable (to the ATM operator) for balance enquiries. It is Your responsibility to keep track of the Available Funds. You acknowledge that the amount stated on the ATM screen, or a printed slip or receipt advice shall not for any purpose whatsoever be taken as a conclusive or up to date statement of the Card.

q. You acknowledge that the available balance in the Card may be different from the balance amount as displayed through any channel, due to pending Transactions or other held amounts (being amounts transacted but not processed) relevant to the Card.

4. LOADING AND RE-LOADING:

a. The Card can be loaded only using the Nublo App using Bank APIs for load through Bank accounts and /or Payment Gateway through Credit/Debit cards.

b. Until the expiry of the Card or termination of these Terms, You can add funds to the Nublo card through the Nublo App (who will advise You of the acceptable methods of payment) or through other methods made available by Us from time to time, subject to certain Limits and fees.

c. Unless stated otherwise the Loaded amounts will be credited to the Available Funds when the Issuer receives such amounts directly or indirectly through the permitted channels.

d. You agree to present the Card and meet identification requirements as may be required from time to time to complete the Load. If the identification verification is not successful, You will not have access to the funds on the Card and will not be allowed to Load the Card or make any Transaction.

e. If the Load amount exceeds the maximum balance permitted by Us from time to time, then at Our discretion such excess amounts shall not be loaded.

f. We are authorized to withhold any Load or temporarily or permanently block Your Account and will not release the funds in relation to such Load, if we have reasonable grounds to believe that such funds are from suspicious, illegal or illegitimate sources or if we have reason(s) to believe that You might be on any sanction list. We will contact You for further information and such other necessary proof (to Our satisfaction) on the source of such Loads. If we are not satisfied with such information or proof, we are authorized to surrender such amounts, without further notice to You, to the relevant law enforcement authorities for further investigation and/or legal action and/or report You and Your Account to relevant law enforcement authorities without prior notice to You. You give Us irrevocable authorization to recover any funds erroneously loaded onto Your Card. If an authorized reload to Your Card has an error or if You require additional information, You must contact Us immediately.

5. KEEPING YOUR CARD AND PIN SECURE:

a. You must sign the back of the Card as soon as You receive it.

b. You must do all that You reasonably can to keep the Card safe and the PIN, CVV and other security details secret and safe at all times and not disclose them to any third party.

c. You must never; (i) allow anyone else to use the Card, PIN or other security details; (ii) write down the PIN or any other security information together with the Card; or (iii) give the PIN or OTP to anyone, authorized or unauthorized.

d. We will never ask You to reveal any PIN.

e. The PIN may be disabled if an incorrect PIN is entered three (3) times. If the PIN is disabled, please contact Us for assistance. If the PIN is disabled, or if a Merchant does not accept Chip and PIN, You will be required to sign for any Transactions at Merchants, provided that this is supported by and acceptable to the Merchant.

f. You must promptly notify Us of any loss or theft of the Card or PIN. We will suspend the Card to prevent further use. If a lost Card is subsequently found, it must not be used unless we confirm it may be used. We will not be liable for any misuse of the Card or unauthorized withdrawal arising out of the loss, theft or misuse of the Card or the PIN.

g. You can avail for a Replacement Card in the event of loss or theft of Your Card subject to You providing the necessary documents and information. Issuance of a Replacement Card is subject to a fee.

h. You will be required to confirm details of any loss, theft or misuse to Us in writing or through the call center and You must assist Us, the police and any other official investigation authority in any enquiries.

i. We may refuse to approve a Transaction and/or suspend the Card, with or without notice, if we think the Card has been or is likely to be misused or if You have breached these Terms, including if we suspect any illegal use of the Card. If we do suspend the Card, we will inform You of Our decision, unless such disclosure is prohibited by law or would otherwise compromise fraud prevention or security measures.

j. If you do not adhere to the requirements stated in this clause regarding the safeguarding of your Card, PIN, CVV, OTP and other security details, you may incur financial losses. In such cases, you will be solely responsible for any resulting consequences.

6. UNAUTHORIZED TRANSACTIONS:

a. You must notify Us of any unauthorized Transactions immediately and in any event within thirty (30) days of the Transaction debit date. We will request that You provide additional written information concerning any such Transaction and You must comply with such request.

b. You will be liable for all losses in respect of the Card if You have (i) acted fraudulently; (ii) failed to use the Card in accordance with c; (iii) have failed to notify Us without undue delay on becoming aware of the loss, theft or misuse of the Card; or (iv) have failed to take all reasonable steps to keep the Card's security features safe.

c. Where You are not liable for an unauthorized Transaction, we will refund the value of that Transaction and will have no further liability to You for any other losses You may suffer. If Our investigations conclude that the Transaction You have disputed has been authorized by You, or on Your behalf, or You have acted fraudulently, we will not refund the value of the Transaction.

7. FEES AND LIMITS:

a. Fees and Limits apply to the Card, as indicated in the Fee Schedule. The fees we charge are subject to change from time to time, in accordance with the Terms and at Our sole discretion. You will be notified of any change in the applicable fees via Your registered email address, or phone number or by posting a notification on Our Website or the Nublo App as we deem necessary.
b. You agree to pay and authorize Us to debit the Available Funds for the fees set out in the Fee Schedule. These fees may be debited from the Available Funds as soon as they are incurred.
c. From time to time, we may Limit the amount You can load on the Card, or the amount You can withdraw from ATMs or spend at Merchants over certain time periods. Some ATM operators also impose their own Limits on the amount that can be withdrawn or spent over a specific time period.
d. Certain Merchants may charge an additional fee if the Card is used to purchase goods and/or services. The fee is determined and charged by the Merchant by including it in the Transaction amount and is not retained by Us.
e. Dynamic Currency Conversion (DCC) is a process whereby the amount of a Transaction is converted by a Merchant or ATM to the currency other than the country's local currency. In this case, the Merchant or ATM operator is applying a foreign exchange margin to the applicable conversion rate that would apply to convert the Transaction currency into another currency. This may result in an increased cost to Your Transaction. For instance, You withdraw cash from an ATM that dispenses a currency other than that of the country where the ATM is located, the Merchant or ATM operator may convert the cash being withdrawn into the domestic (local) currency before converting it back to the cash being dispensed. It might occur even though the cash being dispended is the same as that of one of Your available Currency Wallets. Thus, amount debited or reflecting in Your account statement may be higher than the amount which is dispensed by the ATM. Not every ATM operator informs of the exact amount to be debited to Your Account before You withdraw cash from their ATM.
f. In the event that a withdrawal is made from an ATM outside of the UAE, the local currency will be dispensed after applying the necessary conversion rate as per our prevailing policies to dispense the currency of the country where the ATM is located. The Cardholder acknowledges and accepts that any fees, charges or commissions levied by the bank or any third-party provider in connection with the withdrawal will be deducted from the Card balance."

8. TRANSACTION AND LOAD LIMITS –NUBLO PRE-PAID CARD:

You can find the Transaction and Load Limit details as Transactions and load limits.

Limits	Amount US$	Amount AED
Minimum Initial Load	AED 100	AED 100
Reload Limit*	US$ 10,000	AED 36,700
Annual Limit*	US$ 120,000	AED 440,400
Card Balance*	US$ 10,000	AED 36,700
ATM Withdrawal*	US$ 1,400	AED 5,138

9. FEE SCHEDULE AND DETAILS:

You can find the Fee Schedule and the other relevant details at Fee Schedule.

Sr. No.	Fee Type	Fee Amount
1	Personalised Card Issuance Fee (Primary / Supplementary)	AED 50
2	Replace / Lost – Personalised Card Fee (Primary / Supplementary)	AED 50
3	Exchange Fee	0
4	Domestic ATM (Cash Withdrawal and Balance Enquiry)	0
5	International ATM (USD - Cash Withdrawal and Balance Enquiry)	2 USD
6	International ATM (GBP - Cash Withdrawal and Balance Enquiry)	1 GBP

Sr. No.	Fee Type	Fee Amount
7	International ATM (EUR - Cash Withdrawal and Balance Enquiry)	1.5 EUR
8	International ATM (Other - Cash Withdrawal and Balance Enquiry)	2%
9	International Transaction (Non - Supported Currencies)	2%
10	Gateway Charges - LEAN (Open Banking)	0
11	Gateway Charges - MPGS (Payment Gateway)	0

10. FOREIGN CURRENCY TRANSACTION:

a. A foreign exchange rate will apply in the following instances: (i) initial load or reload(s) using the Card for a Transaction in a currency which is different to the Base Currency or any Wallet currency available on the Card; (ii) POS Terminal Transactions where the Transaction is in a currency other than that available on the Card; (iii) ATM withdrawals where the withdrawal currency is not available on the Card; (iv) in the case where You allocate funds from one Wallet to another or where we allocate funds from one Wallet to a different Wallet in accordance with these Terms.
b. If a foreign exchange conversion takes place, the conversion will be undertaken at the prevailing exchange rate determined by Us when loading or reloading Your Card.
c. Foreign exchange rates are subject to variation and the rate that applies one day will not necessarily be the same on any other day.
d. Additional margins may apply in respect of foreign exchange conversions.

11. MULTICURRENCY PREPAID CARDS:

The following specific terms and conditions will apply to multicurrency prepaid Cards in addition to the general terms and conditions for Cards:
a. Each multicurrency prepaid Card will have a nominated Base Currency in which all funds will be loaded. The Base Currency is AED.
b. Each multicurrency prepaid Card will have multiple Wallets with each such Wallet to comprise Available Funds in the respective currencies as provided by Us at Our sole discretion from time to time.
c. When funds are loaded onto the multicurrency prepaid Card, the payment is made by You in the AED currency, and later we convert that amount into the available currency into the Wallet of Your choice.
d. We may, at Our sole discretion, permit funds to be transferred between the Wallets available on the multicurrency prepaid Card and each such transfer will be undertaken at Our prevailing exchange rates and will be subject to margins for such Transactions determined by Us from time to time.
e. Transactions will be posted on the currency Wallet that matches the Transaction currency. If the Transaction is made in a currency which is different to any of the available currencies on the multi- currency prepaid Card, then the Transaction amount (including any fees) will be converted into the default currency of the Card which is AED.
f. If the amount of a Transaction (including any fees) exceeds the relevant available currency balance on the multi-currency prepaid Card, the amount (including any fees) will be taken by converting amounts from the other currencies on the multi-currency pre-paid card starting with the default currency (AED) and proceeding in the order of priority set by You, otherwise the Default Priority shall apply. If the total amount available in all the currencies is insufficient to fund the Transaction (including any fees) then the Transaction will be declined and the amount in all currencies will retain their original value.
g. You agree that to recover charges/fees or any outstanding amount due to any reason in any Wallet of any multicurrency prepaid Card, we shall have the right to set off such amounts against the balance available on any other Wallets of that multicurrency prepaid Card.
h. The currencies available in respect of the multicurrency prepaid Card may vary from time to time. Before You make a decision to request for issuance of a multicurrency prepaid Card, please check with Us for details of available currencies. We may introduce new currencies from time to time. If we introduce a new currency, the separate terms shall apply to such new currency, and, unless otherwise notified to You, and Fee Schedule shall be deemed to be amended to apply to such new currency.
i. You are responsible for determining the amount held in each currency on Your multicurrency prepaid Card and for ensuring You have sufficient funds for all Transactions.
j. In the event that a Shortfall arises we retain the right to recover this amount by deducting funds held in another currency or decline the Transaction at our sole discretion. When we convert the Shortfall into the relevant currency, we will use the applicable rate that we

use for currency-to-currency allocations on the day we process the Transaction. The Shortfall amount will usually be charged in the Base Currency, unless there are insufficient funds available in the Base Currency, in which case the amount will be funded by converting the outstanding amount into the next available Wallet currency balance on the multicurrency prepaid Card in the order of priority set by You, otherwise Default Priority shall apply. The foreign exchange rate used is the rate determined by Us in effect on the day the fee is applied.

k. If an ATM displays a balance for the Available Funds, this may be displayed in a currency different to the currencies on the multicurrency prepaid Card, in which case the exchange rate applied may be different to ours and a variation may occur. An ATM will not display a balance for each currency available on the multicurrency prepaid Card.

12. SUPPLEMENTARY TECHNOLOGIES:

a. We may make Supplementary Technologies available to You for use in conjunction with or as a replacement for Your physical Card, which may include wristbands and mobile Wallets.

b. All Transactions using Supplementary Technologies may be subject to Additional Terms.

13. CLOSING YOUR ACCOUNT:

a. If You would like to close Your Account, please submit a formal request through Nublo App. At Our option, We may allow you to spend Your Available Balance by withdrawing funds at an ATM, spend the funds by transacting at a Merchant or, if applicable, You can request Your Available Balance be returned via Withdrawal & Account Closure service as offered by Us.

b. All returns will be net of fees or uncollected Transactions.

c. We will pay You Your Available Balance in AED currency and balances in any other Currency Wallets will be converted using the Conversion Rate applicable on the closing date. Upon closure of Your Account, You may be asked to destroy or return the Card to Us. In any event, the Card linked to Your Account will be automatically cancelled.

14. TERMINATION OF AGREEMENT:

a. These Terms shall terminate on the expiry of the Card issued to You under these Terms.

b. We may ask for the return of the Card and end these Terms, with or without notice, if You breach any of these Terms.

c. Upon ending these Terms in accordance with this clause, You will no longer be able to use the Card. Where applicable, the ending of these Terms will not affect Your right (if any) to redeem unspent funds.

d. Nublo reserves the right to terminate these Terms and cancel Your Card at its sole discretion without any cause by providing 15 days' advance notice to You.

15. IMMEDIATE TERMINATION:

a. Notwithstanding any other provision contained in these Terms, Nublo may terminate these Terms and cancel your Card with immediate effect in various scenarios, as provided below but not limited to;

i. Your breach of any provision of these Terms or any other applicable policy of Nublo;

ii. Your breach of any applicable laws and regulations;

iii. Compliance with instructions from appropriate regulatory authorities;

iv. Detection of suspicious or fraudulent activity related to your Card;

v. Failure to provide, update, or maintain accurate Account information, including but not limited to personal identification, address, and contact information;

vi. Any financial distress that impacts Your ability to meet Your obligations under these Terms;

vii. Any legal or regulatory action, claim, investigation, or proceeding involving You or Your Card that, in Our sole discretion, may adversely affect Our reputation or expose Us to any liability;

viii. Failure to maintain a minimum balance or meet other account requirements as specified by Us from time to time;

ix. Misuse or abuse of your Card or the Our services, including but not limited to using the Card for unlawful or prohibited activities;

x. Repeated chargebacks, declined transactions, or other indications of poor financial management;

xi. Violation of any third-party rights, in connection with your use of the Card or Nublo services;

xii. Non-payment of any fees, charges, or penalties owed to Us under these Terms or any other applicable policy; or
xiii. Any other circumstances that, in Nublo's sole discretion, warrant immediate termination of these Terms and cancellation of Your Card to protect its interests, other users, or the public.

16. AMENDMENT:

a. You are deemed to have read, understood and agreed to be bound by these Terms. At any time, we may change, add, amend, supersede or supplement any or all of the provisions of these Terms. Such amendments will be available on the website and/or Nublo App and will be effective from the date of such change. Such changes are deemed to be binding on You whether or not You have received specific notice of such amendments.
b. We may amend these Terms without notice, in order to comply with applicable laws and regulations.

17. PERSONAL DATA:

a. We may contact You by telephone, letter, Whatsapp, SMS or email at the contact details You provide Us. You must let Us know immediately but not later than 7 days if You change Your name, address, phone number or email address.
b. By requesting the issuance of or using the Card, You irrevocably authorize Us to disclose and furnish to Our authorized representatives, subsidiaries, associates, branches, assignees, agents or other connected parties (including the Program Manager, Our third- party advisers and marketing partners) such information as we deem fit concerning You ("**Personal Information**"), including but not limited to, the Card governed by these Terms.
c. Your Personal Information may be disclosed by Us to third parties (including the Program Manager and other third-party providers), to enable Us to provide the Card Services and for data analysis (including market research), anti-money laundering, detection of crime, legal compliance, enforcement, and fraud prevention purposes and in general in compliance of any applicable laws and regulations.
d. Unless You expressly instruct Us to the contrary, we shall be at liberty to share the necessary information relating to You with Our brand partners with whom we have entered formal agreements, for the purpose of cross selling and marketing of goods and services to You.
e. We shall have an unconditional right to disclose any Personal Information if such information is generally available in public and is lawfully in Our possession, or is sought by a court of competent authority, governmental body or regulatory authority (including the Central Bank of the UAE or any other country).

18. LIABILITY:

a. The Card is issued entirely at Your risk. We shall bear no liability whatsoever for any loss or damage arising from the issuance of the Card, howsoever caused. Use of the Card for any Transaction shall be at Your sole risk. By requesting the issuance of or using the Card You confirm assuming any and all financial risks incidental to or arising out of the Card's usage with no further liability to Us.
b. You agree to fully indemnify Us, defend Us and hold Us harmless against any and all actions, proceedings, costs, losses or damages (including legal costs) we may suffer in connection with the usage of the Card or any misuse of the Card, OTP, biometrics, passwords, PIN and/or other facilities provided to You in relation to the Card. This includes any liability arising from Your failure to maintain safe custody of the Card at any time before the Card is cancelled.
c. You hereby agree to fully indemnify Us, defend Us and hold Us, Our officers, employees or agents harmless against any liability, loss, charge, demand, proceedings, cost (including legal fees), or expense, which we may suffer, pay or incur as a result of Us, Our officers, employees or agents acting upon or delaying or refraining from acting upon instructions of You or purporting to be from You or which we believe have been issued by or for You or in any way in connection with the Card or these Terms, or in enforcing these Terms and in recovering any amounts due to Us or incurred by Us in any legal proceedings of any nature.
d. We will not be liable to You for: delays or mistakes resulting from any circumstances beyond Our control, including, without limitation: (i) acts of governmental authorities, national emergencies, insurrection, war, or riots; (ii) the failure of Merchants to accept or honor the Card; (iii) the failure of Merchants to perform or provide services or goods; (iv) communication system failures; (v) interception of communications; or (vi) mechanical defects, failures or malfunctions attributable to Your equipment, any internet service, or any payment system.
e. We are not responsible for ensuring that ATMs and POS Terminals will accept the Card, or for the way in which a Merchant processes a Transaction. We will not be liable to You for any non- acceptance of the Card, for disputes concerning the quality of goods or services purchased on the Card or any additional fees charged by the operators of these terminals (for example, when You withdraw currency from an ATM, the ATM operator may charge You an additional fee for the service).

f. Information sent over the internet may not be completely secure and the internet and the online systems are not controlled or owned by Us. Therefore, we cannot guarantee that they will function at all times, and we accept no liability for unavailability or interruption, or for the interception or loss of any information or other data.

g. We will not be liable under any of the following circumstances:

i. If, through no fault of ours, there are insufficient funds available on the Card to complete a Transaction;

ii. If the Card is not honored, is declined, is damaged or is confiscated at any ATM or POS Terminal for any reason;

iii. If the Card is not honored, or is declined at any Internet Merchant location for any reason;

iv. If an ATM where You are making a cash withdrawal does not have enough cash;

v. If an electronic terminal where You are making a Transaction does not operate properly;

vi. If a Load has been declined due to Our discretion;

vii. If access to the Card has been blocked after You have reported the Card lost or stolen;

viii. If there is a hold or Your funds are subject to legal process or other encumbrance restricting their use;

ix. If we (in Our sole discretion) have reason to believe the requested Transaction is unauthorized;

x. If circumstances beyond Our control (such as fire, flood or computer or communication failure) prevent the completion of the Transaction, despite reasonable precautions that we have taken; xi. Any consequential damages, extraordinary damages, special or punitive damages; and Any other exception stated in these Terms.

h. In the event that we are held liable to You, You will only be entitled to recover Your actual damages which are proven with detailed and comprehensive documentary evidences. In no event shall You be entitled to recover any indirect, costs (including legal costs) consequential, exemplary or special damages (whether in contract, tort or otherwise), even if You have advised Us of the possibility of such damages. This provision shall not be effective to the extent otherwise required by law. To the extent permitted by law, You agree that Your recovery for any alleged negligence or misconduct by Us or service agents shall be limited to the available balance on the Card.

19. DISCLAIMERS:

a. We shall be absolved of any liability in case:

i. You fail to avail the usage of the Card due to force majeure conditions including but not limited to not being in the required geographical range or any other reason including natural calamities; legal restraints or any technical lapses in the telecommunication network or any other reasons beyond Our actual control. Also we are herein absolved of any kind of liability arising due to a loss;

ii. Direct or indirect incurred by You or any other person due to any lapse in the facility owing to the above-mentioned reasons;

iii. There is any unauthorized use of the OTP, PIN, biometric verification or for any fraudulent, duplicate or erroneous Transaction instructions given by use of the PIN (unless confirmed by Us to You that the Card is blocked or cancelled);

iv. There is loss of any information during processing or transmission or any unauthorized access by any other person or breach of confidentiality;

v. There is any lapse or failure on the part of the service providers or any third party affecting the usage of the Card (and for this purpose, we make no warranty as to the quality of the service provided by any such provider);

vi. Any loss or damage whether direct, indirect or consequential, including but not limited to loss of business, contracts, or goodwill, loss of use or value of any equipment including software, whether foreseeable or not, suffered by You or any person howsoever arising from or relating to any delay, interruption, suspension, resolution or error by Us in receiving and processing the request and in formulating and returning responses or any failure, delay, interruption, suspension, restriction, or error in transmission of any information or message to and from Your telecommunication equipment and the network of any service provider and Our system or any breakdown, interruption, suspension or failure of Your telecommunication equipment, Our system or the network of any service provider and/or any third party who provides such services as is necessary to provide.

b. We shall not be involved in or in any way liable to You for any dispute between You and a cellular services provider or any third-party service provider (whether appointed by Us on that behalf or otherwise).

c. We shall not be held liable for any loss incurred by You due to use of the Card by any other person with Your express or implied permission.

d. We shall not be held responsible for the confidentiality, secrecy, and security of the personal or account information being transmitted for effecting Your instructions.

e. We shall not be held liable for any loss suffered by You due to disclosure of the Personal Information to a third party by Us, for

reasons inclusive but not limited to participation in any telecommunication or electronic clearing network, in compliance with a legal directive, for statistical analysis or for credit rating.

f. We will endeavor to make sure the Card continues to function, but its operation may be subject to interruptions and/or require periodic modifications and improvements; and to help reduce the risks, we may set from time-to-time revised limitations on the Transaction size, Loading amounts and other features of the Card.

20. COMMUNICATION AND NOTICES:

a. If You have any queries regarding the Card, please refer to the website and Nublo App.

b. We can be contacted using the contact details provided on the website, The Nublo App and on card back.

c. We undertake to communicate with You in English regarding any aspect of the Card.

d. You agree that we may communicate with You by email, SMS, Whatsapp, Nublo App or through the website for issuing any notices or information about the Card and therefore it is important that You ensure that You keep Your email address or mobile phone number updated and regularly check the applicable website and/or Nublo App.

e. We may record and shall keep a record of Your application form, identification documents, and request forms as well as any electronic, written or verbal communications for as long as we consider appropriate or as mandated by any applicable law.

f. You agree that all the telephone calls between You and Us may be tape recorded by Us and that such recording may be submitted in evidence in any proceedings.

g. Save as otherwise provided in these Terms, any demand or communication made by Us under these Terms will be in writing in English and made at the address given by You (or such other address as You may notify Us from time to time).

h. Any notice sent by either party under these Terms by email shall be deemed given on the day the email is sent, unless the sending party received an electronic indication that the email was not delivered; and if by post, shall be deemed given three (3) Working Days after the date of posting.

21. GENERAL PROVISIONS:

a. In addition to any general right to set-off or other rights conferred by the law to Us, You agree that we may in Our absolute discretion at any time and without notice combine and consolidate all or any amounts in any Card or any Wallet of yours regardless of currency to set-off or transfer any amount in such Card in or towards discharge of all amounts due to Us under any Card or Wallet with Us whether in AED or any other currency and may do so notwithstanding that the balances on such Cards or Wallets and the sums due may not be expressed in the same currency and You hereby authorize Us to offset any such combination, consolidation, set-off or transfer with the necessary conversion at Our prevailing exchange rates which shall be determined by Us at Our absolute discretion.

b. No forbearance, neglect or waiver by Us in the exercise or enforcement of any right or remedy arising from these Terms will prejudice Our right thereafter to strictly enforce the same.

c. No waiver by Us will be effective unless it is in writing.

d. If any provision in these Terms is found to be unenforceable, invalid or illegal, such provision will be deemed to be deleted and the remainder of these Terms will be unaffected by such unenforceability, invalidity or illegality.

e. We shall not be liable for Our inability to pay due to restrictions on convertibility or transferability, requisitions, involuntary transfers, acts of war or civil strife or other similar causes beyond Our control. In such event no other office, branch, subsidiary or affiliate of ours shall be responsible or liable to You.

f. We are entitled to record all communication and conversations (including telephone conversations) with You and/or any authorized representative of yours and messages and/or instructions sent to Us whether by telephone, in person, voice, use of a touch-tone keypad, electronically or otherwise and Transactions conducted by or through any such medium. Our record of all such communications, conversations, instructions, messages and Transactions will be conclusive and binding on You for all purposes.

g. We may assign any of Our rights and obligations under these Terms, without Your prior consent, to any third party, subject to such party continuing the obligations under these Terms to You. You are not permitted to assign Your rights and obligations under these Terms to any third party.

h. These Terms may be executed in any number of counterparts, and by different parties in separate counterparts, and each counterpart hereof shall be deemed to be an original, but all such counterparts together shall constitute one and the same agreement.

22. GOVERNING LAW AND JURISDICTION:

This Agreement and any disputes or matters arising from or in connection with it, whether of a contractual or non-contractual nature, shall be governed by and construed in accordance with the laws of England and Wales to the extent such laws don't conflict with the laws of UAE. The parties hereby agree to submit to the non-exclusive jurisdiction of the courts of the Abu Dhabi Global Markets for the resolution of any disputes, controversies, or claims arising out of or relating to this Agreement, including but not limited to its interpretation, validity, enforceability, performance, breach, or termination. This clause shall not preclude either party from seeking interim or injunctive relief in any other jurisdiction where appropriate or necessary to protect their respective rights and interests.

Nublo Payments Services LLC, a registered entity under license number 1144436, is authorized as a Payment Service Provider by the Department of Economic Development (DED). In compliance with regulatory requirements, Nublo Payments Services L.L.C. has partnered with licensed entities PayBy Technologies Projects LLC and NymCard Payment Services LLC to provide secure and efficient payment solutions. PayBy holds both a Stored Value Facility (SVF) license and a Retail Payment Service and Card Scheme (RPSC) license. Similarly, NymCard holds an RPSC license, ensuring robust compliance and reliability in delivering innovative payment services to our users.

Our partnerships with PayBy Technologies and NymCard ensure that all payment services provided by Nublo adhere to the highest standards of security, compliance, and operational efficiency. Both entities are fully licensed and regulated by relevant authorities, further reinforcing our commitment to delivering trustworthy and compliant financial services.

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